

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE ENROLLED ACT No. 1429

AN ACT to amend the Indiana Code concerning civil law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 34-11-2-17 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 17. (a) This section only applies to an appraisal or appraisal service performed after June 30, 2026.**

(b) The following definitions apply throughout this section:

(1) "Appraisal" means a real estate appraisal, appraisal review, appraisal consulting, or other valuation or valuation related service performed by a real estate appraiser or an appraisal management company.

(2) "Appraisal management company" means an appraisal management company registered under IC 25-34.1.

(3) "Appraisal service date" means the date:

(A) stated on the appraisal report; or

(B) on which an appraisal or appraisal service was performed or should have been performed under the terms of the engagement.

(4) "Civil action" means a civil action or proceeding, including a civil action in contract, tort, negligence, misrepresentation, or consumer protection. However, the term does not include:

(A) a civil action or proceeding based on:

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(i) intentional fraud; or

(ii) willful misconduct, including deliberate misrepresentation, concealment, or other intentional wrongful acts; or

(B) a licensing, disciplinary, or administrative enforcement action under IC 25-34.1 or any other law.

(5) "Real estate appraiser" means a real estate appraiser licensed or certified under IC 25-34.1.

(c) A civil action may not be brought against a real estate appraiser or appraisal management company for damages or other relief arising out of, based upon, or relating to an appraisal or appraisal service unless the civil action is commenced not later than five (5) years after the appraisal service date.



Speaker of the House of Representatives

President of the Senate

President Pro Tempore

Governor of the State of Indiana

Date: _____ Time: _____

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